

The Excise (Malt Liquors) Act, 1890

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The Excise (Malt Liquors) Act, 1890

UNION OF INDIA

India

The Excise (Malt Liquors) Act, 1890

Act 13 of 1890

Published on 28 March 1890

Commenced on 28 March 1890

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The Excise (Malt Liquors) Act, 1890

Act

No. 13 of 1890

[As On 1958]

1855.

[28th March 1890.]

An Act [***]

[Words and figures "to amend the Excise Act, 1881, and the Bengal Excise Act, 1878, and" were omitted by the Repealing and Amending Act, 1914 (10 of 1914)]

to apply to Malt Liquor certain provisions of the Sea Customs Act, 1878, respecting spirit.

WHEREAS it is expedient [***]

[Words and figures "to amend the Excise Act, 1881, and the Bengal Excise Act, 1878, and" were omitted by the Repealing and Amending Act, 1914 (10 of 1914)]

to apply to malt liquor certain provisions of the Sea Customs Act, 1878, respecting spirit; It is hereby enacted as follows :-

1.

Title. - (1) This Act may be called the Excise (Malt Liquors) Act, 1890; [*****]

[The word "and" was omitted by the Repealing and Amending Act, 1914 (10 of 1914), section 3 and Schedule II.]

(2)

[*****]

[Sub-section (2) was omitted, by the Repealing and Amending Act, 1914 (10 of 1914), section 3 and Schedule II.]

.

2.

-5. Amendment of the Excise Act, 1881 (22 of 1881). - [Repealed by the Excise Act, 1896 (12 of 1896), Section 2 and Schedule.]

6.

-7. [Amendment of the Bengal Excise Act, 1878 (Ben.VII of 1878).] - Repealed in Bengal by the Bengal Excise Act, 1909 (Bengal Act 5 of 1909), and in Assam by E.B. & A. Excise Act, 1910 (E.B. & A. 1 of 1910), Section 2.

8.

Saving of legislative authority of Bengal Council. - Repealed in Bengal by the Bengal Excise Act, 1909 (Bengal Act 5 of 1909), and in Assam by E.B. & A. Excise Act, 1910 (E.B. & A. 1 of 1910), Section 2.

Drawback of Excise-duty on Export of Malt Liquor

9.

[Application of provisions of section 150, Act 8 of 1878 to malt liquor.

[Section 9 has been declared to be in force in the Khondmals District by the Khondmals Laws Regulation, 1936 (4 of 1936), Section 3 and Schedule and in the Angul District by the Angul Laws Regulation, 1936 (5 of 1936) Section 3 and Schedule. This Regulation has now repealed by Orissa Act, 19 of 1967. Angul district as formed that Regulation is now a sub-division of the district of Dhenkanal.]

- The provisions of section 150 of the Sea Customs Act, 1878, with respect with the allowance of a drawback of excise-duty paid on spirit manufactured in [the territories which, immediately before the 1st November 1956, were comprised in Part A States and Part C States] and exported to a foreign port, and with respect to the regulation of the draw back by the quantity of such spirit, shall apply also, so far as they can be made applicable to fermented liquor made in [the said territories]

[Substituted by the Adaptation of Laws (No.2) Order, 1956, for "Part A States and Part C States".]

from malt and so exported and to the drawback of the excise-duty paid on such liquor.]

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